

Aligarh Muslim University Act, 1920

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Aligarh Muslim University Act, 1920

UNION OF INDIA

India

Aligarh Muslim University Act, 1920

Act 40 of 1920

Published on 14 September 1920

Commenced on 14 September 1920

[This is the version of this document from 15 June 1972.]

[Note: The original publication document is not available and this content could not be verified.]

[Amended by The Aligarh Muslim University (Amendment) Act, 1972 (Act 34 of 1972) on

15 June 1972

]

Aligarh Muslim University Act, 1920

Act No. 40 OF 1920

1419.

Object and Reasons.- Act 62 of 1951.- The University Education Commission, while making certain recommendations in regard to University education generally, have also dealt with certain special problems relating to the Central Universities at Banaras, Aligarh and Delhi. These recommendations were generally approved by the Central Advisory Board of Education at their meeting in April, 1950. The Government of India, after careful consideration of the matter, have decided that while it is not necessary to change the names of the Banaras and Aligarh Universities the

disqualifications imposed by the respective Acts on non-Hindus and non-Muslims being members of the Court of the University should be removed. They have also decided that other recommendations of the University Education Commission, in so far as they relate to the Central Universities, should be implemented as far as possible. It is, therefore, now proposed to amend the Aligarh Muslim University Act in order to give effect to those recommendations.

2. The main features of the Bill are

- (i) religious instruction is to be given only to those who wish to receive it, as required by Article 28 (3) of the Constitution;
- (ii) membership of the Court is to be thrown open to all persons irrespective of religion or caste;
- (iii) the President of India is to be the Visitor of the University and he shall exercise the same powers as he does now as Lord Rector of the University;
- (iv) The Governor of Uttar Pradesh will be the Chief Rector of the University and provision is also made for the appointment of other persons as Rectors;
- (v) provision for a Visiting Board is to be abolished.

3. Advantage is taken of this opportunity to make a few other minor amendments so as to bring this Act into line with the other two Central Acts wherever necessary.

4. The first Statutes which formed part of the Aligarh Muslim University Act, had been considerably amended by the Court, and it is therefore proposed that the Central Government should assume power for a temporary period to make modifications in the Statutes, so as to bring them into accord with the Act, as now amended, and the recommendations of the University Education Commission.

5. Amendments consequential on the recommendations of the University Education Commission have already been undertaken with regard to the Banaras Hindu University Act". Gazette of India, 9-6-1951. Pt. II-Sec. 2, page 410.

Act 19 of 1965.- On 25th April, 1965 grave disturbances took place in the Aligarh Muslim University Campus in which the University students caused injuries to some members of the Court which was then in session. The Vice-Chancellor who was made the principal target of concerted attack sustained serious injuries, providentially escaping more dire consequences. The University was indefinitely closed.

Enquiries revealed that the disturbances were too well organised to be sporadic and seemed to flow from certain unhealthy influences which for some time had been adversely influencing the efficiency and the academic purposes of the University.

After carefully considering the various factors which culminated in the aforesaid disturbances involving violence and closure of the University, Government came to the conclusion that the University could not reopen and resume normal functioning without certain immediate measures being taken to change the administrative set up of the University. As Parliament was not in session at the time and the need for administrative reorganisation was imperative, the President promulgated the Aligarh Muslim University (Amendment) Ordinance, 1965 on the 20th May, 1965. The present Bill seeks to replace the Ordinance by an Act of Parliament.

The principal objects of the Bill in the immediate future are (i) to provide an administrative structure within which the University's return to normal functioning and pursuit of basic academic purposes may be facilitated and ensured, and (ii) further to ensure that, as an emergency measure and pending long term legislation about the University to be brought in the near future before Parliament by Government, it makes the transition from chaos to order both brief and smooth.

The main features of the Bill are :

- (a) the reconstitution of the Court of the University as an advisory body and reduction in the number of its membership;
- (b) the reconstitution of the Executive Council;
- (c) vesting of certain powers in the Vice-Chancellor and the Registrar in the matter of discipline. Gazette of India, 16-8-1965, Pt. II, Section 2, Ext., p. 638.

Act 34 of 1972.- As a result of the disturbances that took place in the Aligarh Muslim University in April, 1965, the President promulgated the Aligarh Muslim University (Amendment) Ordinance, 1965 on the 20th May, 1965 to amend the Aligarh Muslim University Act, 1920. The Ordinance was later replaced by the Aligarh Muslim University (Amendment) Act, 1965. Both the Ordinance and the amending Act were temporary measures to tide over the difficult situation which was prevalent in the University at that time and the intention was to bring before Parliament, in the due course, a comprehensive long-term legislation for the University.

2. The proposed long-term legislation could not be introduced on account of certain developments beyond the control of the Government. The intention all along was that the legislation for the Benaras Hindu University and the Aligarh Muslim University should be broadly on similar lines. In the year 1968, there was serious unrest and agitation in the Benaras

Hindu University and an Inquiry Committee was appointed by the Visitor. In pursuance of the report submitted by the Inquiry Committee in 1969, short-term legislation to amend the Benaras Hindu University Act was passed by Parliament in 1969. The long-term recommendations of the Committee were still under consideration when the University Grants Commission appointed high powered Committee on Governance of Universities and colleges. It was decided by Government that the report of this Committee should be awaited before introducing long-term legislation for the Benaras Hindu University as well as the Aligarh Muslim University.

3. Meanwhile, the Aligarh Muslim University decided to hold its Golden Jubilee Celebrations in December, 1970. The University was anxious to have a democratic set up before that time. In order to satisfy same and amend certain provisions of the Act with a view to providing for a democratic set-up of the Court and Executive Council of the University. Accordingly the Aligarh Muslim University (Amendment) Bill, 1970 was introduced in the Rajya Sabha on August 31, 1970.

4. The University subsequently decided to postpone its Golden Jubilee Celebrations and the purpose of introduction of the Bill thus having been defeated, the Bill was proceeded with further. It is proposed to withdraw the said Bill.

5. The report of the Gajendragadkar Committee on Governance of Universities was received by Government in July 1971. Recommendations of the Committee were accepted both by the University Grants Commission and Government in principle. It was also decided to amend the Acts of Central Universities in the light of the recommendations made by the Committee. Based on the recommendations of the Committee and taking into account other relevant factors, Government decided to introduce comprehensive legislation for the Aligarh Muslim University. The Bill seeks to achieve this purpose.

The main features of the Bill are

(i) The University is being given additional powers, important among which are : Provision for instruction through correspondence courses or any other method; establishment of special centres and specialised laboratories and such other units for research and education as are necessary for the furtherance of the objects of the University within a radius of 25 kilometres of the University; and appointment of persons working in any other University, institution or organisation as teachers of the University.

(ii) In view of the persistent demand for preserving the residential character of the University, the provision in the Act of the University for affiliation of colleges is being deleted.

(iii) The mode of appointment of officers of the University is being revised in the light of the recommendations made by the Gajendragadkar Committee. The Chancellor will hereafter be appointed by the visitor out of a panel of names submitted by the Executive Council instead of being elected by the Court. The Vice-Chancellor will be appointed by the visitor on the recommendation made by the Committee consisting of two nominees of the Executive Council and one nominee of the Visitor. Provision is being made for retirement of the Vice-Chancellor/Pro-Vice-Chancellor on attaining the age of 65 years. The term of the Vice-Chancellor is being reduced from 6 to 5 years with eligibility for re-appointment.

(iv) The constitution and functions of the Court, the Executive Council and the Academic Council and other authorities of the University are being revised in the light of the recommendations made by the Gajendragadkar Committee. The Court will hereafter be a "deliberative" body and will not be saddled with the authority to overrule the decisions of the Executive Council and other bodies of the University. It is, however, being vested with powers to review the broad policies, programmes of the University and to suggest measures for its improvement and development. The Court will consist of 104 members, of whom 64 will be internal members and 40 external members. The members of the Court will inter alia include 15 representatives of students. The Executive Council will be the principal executive body of the University and will consist of 19 members, a majority of whom will be teachers of the University. The Academic Council will now have the general supervision over the academic policies of the University and will no longer be concerned with details. The Finance Committee, which was hitherto an authority of the University will now be a sub-committee of the Executive Council.

(v) Provision is being made for the establishment of a Students, Council as an authority of the University. The Council shall have the power to make recommendations to the University authorities in matters affecting the academic work of the students and about the rules affecting the discipline, welfare, management of hostels, etc.

(vi) Each Department will have a Board of Studies which will make recommendations to the Faculty regarding academic matters concerning the Department. Provision is also being made for Departmental Committees in the case of departments having more than twenty teachers.

(vii) The powers of the University to make Statutes, Ordinances and Regulations are being enlarged to include matters

like manner of appointment of staff, procedure for arbitration and appeal, Associations of teaching and non-teaching staff, participation of students in the affairs of the University, maintenance of discipline etc.

(viii) A new provision is being made to enable the aggrieved students to appeal to the Executive Council or to get the disputes referred to a Tribunal of Arbitration.

(ix) A provision is being made to protect officers and employees of the University against civil suits in respect of action taken by them in good faith. -Gazette of India, 29-5-1972, Pt.II, S.2, Ext., p.567.

Act 62 of 1981.- A Bill to amend the Aligarh Muslim University Act, 1920, was introduced in the Lok Sabha on 12th August, 1980, so as to amend the definition of the expression 'University' and introduce various other changes in the Act. Subsequently, representations were received from various Muslim organisations, the Vice-Chancellor and the representatives of the University teachers and students that amendments to the Statutes of the University should also be incorporated in the Bill and passed by Parliament along with the amendments to the Act. After examining these representations, it has been decided to introduce a consolidated Bill to amend both the Act and Statutes of the Aligarh Muslim University.

2.

The main features of the Bill are as follows:-

- (1) Omission of the words "establish and" from the long title and Preamble to the Act;
- (2) Amendment of the definition of the expression "University" occurring in the Act;
- (3) Empowering the University to promote especially the educational and cultural advancement of the Muslims of India.
- (4) Restoring the status of the supreme governing body of the University to the Court and modifying its composition;
- (5) Change in the procedure of appointment of the Chancellor, Pro-Chancellor and Vice-Chancellor;
- (6) Restoration of the office of the Honorary Treasurer; and
- (7) Modification of the composition of the Executive Council and the Academic Council.

3. The Bill seeks to achieve the above objects.-Gazette of India, 23-12-1980, Pt.II, Section 2, Ext., p. 1384.

[AS ON 1956]

An Act to establish and incorporate a teaching and residential Muslim University at Aligarh.

[14th September, 1920.]

WHEREAS it is expedient to establish and incorporate a teaching and residential Muslim University at Aligarh, and to dissolve the Societies registered under the Societies' Registration Act, 1860 (21 of 1860), which are respectively known as the Muhammadan Anglo-Oriental College, Aligarh, and the Muslim University Association, and to transfer to and vest in the said University all properties and rights of the said Societies and of the Muslim University Foundation Committee;

It is hereby enacted as follows:-

1.

Short title and Commencement.-

(1)

This Act may be called the Aligarh Muslim University Short Act, 1920.

(2)

It shall come into force on such [date]

[This Act was brought into force from the 1st September, 1920, see Gazette of India, 1920, Pt.I, p. 2213]

as the Central Government may, by notification in the Official Gazette, appoint.

2. Definition.-

In this Act, and in all Statutes made thereunder, unless there is anything repugnant in the subject or context,-

(a)

" Academic Council " means the Academic Council of the University;

(b)

" Court " means the Court of the University;

(c)

"Executive Council" means the Executive Council of the University;

(d)

"Hall" means a unit of residence for students of the University, provided, [maintained or recognised]

[Substituted by Act 62 of 1951, s.2, for "or maintained"]

by the University;

[* * *]

[Cl.(e) omitted by Act 62 of 1951, s.2.]

(f)

" Statutes," " Ordinances " and " Regulations " mean, respectively, the Statutes, Ordinances and Regulations of the University for the time being in force;

(g)

" teachers " means professors, readers, lecturers, demonstrators and such other persons as may be appointed for imparting instruction in the University or a Hall; and

(h)

" University " means the Aligarh Muslim University.

The University

3.

Incorporation.-

The First Chancellor, Pro-Chancellor and Vice-Chancellor who shall be the persons appointed in this behalf by a notification of the Central Government in the Official Gazette, and the persons specified in the Schedule as the first members of the Court and all persons, who may hereafter become, or be appointed as, such officers or members, so long as they continue to hold such office or membership, are hereby constituted a body corporate by the name of the Aligarh Muslim University, and shall have perpetual succession and a common seal and shall sue and be sued by that name.

4.

Dissolution of the Muhammadan Anglo-oriental College Aligarh and the Muslim University Association and transfer of all property to the University.-

From the commencement of this Act-

(i)

the Societies known as the Muhammadan Anglo-Oriental College, Aligarh, and the Muslim University Association shall be dissolved, and all property, movable and immovable, and all rights, powers and privileges of the said Societies and all property, movable and immovable, and all rights, powers and privileges of the Muslim University Foundation Committee shall be transferred to and vest in the University and shall be applied to the objects and purposes for which the University is incorporated;

(ii)

all debts, liabilities and obligations of the said Societies and Committee shall be transferred to the University and shall thereafter be discharged and satisfied by it;

(iii)

all references in any enactment to either of the said Societies or to the said Committee shall be construed as references to the University;

(iv)

any will, deed or other document, whether made or executed before or after the commencement of this Act, which contains any bequest, gift or trust in favour either of the said Societies or of the said Committee shall, on the commencement of this Act, be construed as if the University was therein named instead of such society or Committee;

(v)

subject to any orders which the Court may make, the buildings which belonged to the Muhammadan Anglo-Oriental College, Aligarh, shall continue to be known and designated by the names and styles by which they were known and designated immediately before the commencement of this Act;

(vi)

subject to the provisions of this Act, every person employed immediately before the commencement of this Act in the Muhammadan Anglo-Oriental College, Aligarh, shall hold employment in the University by the same tenure and upon the same terms and conditions and with the same rights and privileges as to pension and gratuity as he would have held the same under the Muhammadan Anglo-Oriental College, Aligarh, if this Act had not been passed.

5.

Power of the University.-

The University shall have the following powers, namely:-

(1)

to provide for instruction in such branches of learning as the University may think fit, and to make provision for research and for the advancement and dissemination of knowledge;

(2)

to promote Oriental and Islamic studies and give instruction in Muslim theology and religion and to impart moral and physical training;

(3)

to hold examinations and to grant and confer degrees and other academic distinctions to and on persons who-

(a)

shall have pursued a course of study in the University, or [in an institution maintained under sub-section (2) of section 12 or admitted to the privileges of the University under section 12A, or]

[Inserted by Act 17 of 1941, s.2]

(b)

are teachers in educational institutions, [or]

[Inserted by Act 62 of 1951, s.3]

(c)

[being women, shall have pursued a course of private study,]

[Inserted by Act 62 of 1951, s.3]

under conditions laid down in the Statutes and Ordinances, and shall have passed the examinations of the University under like conditions;

(4)

to confer honorary degrees or other distinctions [* * *]

[The words " on approved persons" omitted by Act 62 of 1951, s.3]

in the manner laid down in the Statutes;

(5)

to grant such diplomas [and certificates]

[Inserted by Act 62 of 1951, S.3]

to and to provide such lectures and instruction for persons, not being members of the University, as the University may determine;

(6)

to co-operate with other Universities and authorities in such manner and for such purposes as the University may determine;

(7)

to institute professorships, readerships, lectureships and [* *]

[The word " any" omitted by Act 62 of 1951, s.3]

other teaching posts required by the University, and to appoint persons to such professorships, readerships, lectureships [and other posts]

[Substituted by Act 62 of 1951, s.3, for " and posts"]

;

(8)

to institute and award fellowships (including travelling fellowships), scholarships, [studentships]

[Ins.by Act 62 of 1951, s.3]

exhibitions and prizes in accordance with the Statutes and the Ordinances;

(9)

to institute and maintain Halls [and Hostels and to recognise places of residence for the]

[Substituted by Act 62 of 1951, s.3, for " for the residence of"]

students of the University;

(10)

to demand and receive such fees and other charges as may be prescribed by the Ordinances;

(11)

to supervise and control the residence and [to regulate the]

[Inserted by Act 62 of 1951, s.3]

discipline of students of the University, and to make arrangements for promoting their health; [* * *]

[The word " and" omitted by Act 62 of 1951 s.3]

(11A)

[to make special arrangements in respect of the residence, discipline and teaching of women students;

(11B)

to create administrative, ministerial and other necessary posts and to make appointments thereto; and]

[Ins.by Act 62 of 1951, s.3]

(12)

to do all such other acts and things whether incidental to the powers aforesaid or not as may be requisite in order to further the objects of the University [* * *]

[Certain words omitted by Act 62 of 1951, s.3]

.

6.

Recognition of degrees.-

The degrees, diplomas and other academic distinctions granted or conferred to or on persons by the University shall be recognised of by [the Central and State Governments]

[Substituted by the A.O. 1948 for " any Govt. in British India"]

as are the corresponding degrees, diplomas and other academic distinctions granted by any Other University incorporated under any enactment.

7.

Reserve fund.-

The University shall invest and keep invested in securities in which trust funds may be invested in accordance with the law for the time being in force relating to trusts in [India]

[Substituted by Act 62 of 1951, s.4, for " Part A States and Part C States"]

a sum of thirty lakhs of rupees as a permanent endowment to meet the recurring charges of the University other than charges in respect of fellowships, scholarships, prizes and rewards:

Provided that-

(1)

any Government securities as defined in the Indian Securities Act, 1920 (10 of 1920), which may be held by the University shall, for the purposes of this section, be reckoned at their face value; and

(2)

the aforesaid sum of thirty lakhs shall be reduced by such sums as, at the commencement of this Act, the Central Government shall, by order in writing, declare to be the total capitalised value, for the purpose of this section-

(a)

of all permanent recurring grants of money which have been made either to the Muhammadan Anglo-Oriental College, Aligarh, the Muslim University Association or the Muslim University Foundation Committee, by any Ruler of a State in India; and

(b)

of the total income accruing from immovable property (not being land or buildings, in the occupation and use of the said college) which by the operation of this Act has been transferred to the University.

8.

[University open to all classes castes and creeds.-

[Substituted by Act 62 of 1951, s.5 for former s.8]

The University shall be open to persons of either sex and of whatever race, creed, caste, or class, and it shall not be lawful for the University to adopt or impose on any person, any test whatsoever of religious belief or profession in order to entitle him to be admitted therein, as a teacher or student, or to hold any office therein, or to graduate thereat, or to enjoy or exercise any privilege thereof, except in respect of any particular benefaction accepted by the University, where such test is made a condition thereof by any testamentary or other instrument creating such benefaction:

Provided that nothing in this section shall be deemed to prevent religious instruction being given in the manner prescribed by the Ordinances to those who have consented to receive it.]

9.

Religious Instruction.

[Rep.by the Aligarh Muslim University (Amendment) Act, 1951 (62 of 1951), s.6.]

10.

Residence of students.-

Every student of the University shall reside either in a hall or under such conditions as may be prescribed by the Ordinances.

11.

[Teaching in the University.-

[Substituted by Act 62 of 1951, s.7, for the former s.11]

All recognised teaching for the purpose of University degrees, diplomas and certificates shall be conducted in the name of the University and in accordance with the Ordinances and shall include lectures, seminars, tutorial instruction and practical work in the laboratory or in the field.]

12.

[Power to establish and maintain High Schools and other institutions.-

[Substituted by Act 62 of 1951, s.8, for the former s.12]

(1)

The University shall, subject to the Statutes, have power to establish and maintain High Schools within a radius of fifteen miles from the University Mosque.

(2)

The University may also, with the sanction of the Visitor and subject to the Statutes and the Ordinances, establish and maintain within the aforementioned limits any other institution whose objects fall within the powers of the University as described in section 5.]

12A.

[Power to recognise colleges and institutions.-

[Substituted by Act 62 of 1951, s.9, for s. 12A which was ins. by Act 18 of 1931, Section 2.]

With the approval of the Academic Council and the sanction of the Visitor and subject to the Statutes and the Ordinances, the University may admit colleges and institutions within fifteen miles of the University Mosque to such privileges of the University as it thinks fit.]

The [Visitor]

[Substituted By Act 62 Of 1951, S.10, For " Lord Rector"]

13.

The visitor.-

(1)

The President shall be the [Visitor]

[Substituted by Act 62 of 1951, s.10, for " Lord Rector"]

of the University.

(2)

The [Visitor]

[Substituted by Act 62 of 1951, s.10, for " Lord Rector"]

shall have the right to cause an inspection to be made by such person or persons as he may direct, of the University, its buildings, laboratories, and equipment, and of any institution maintained by the University, and also of the examinations, teaching and other work conducted or done by the University, and to cause an inquiry to be made in like manner in respect of any matter connected with the University [* * *]

[Certain words omitted by Act 62 of 1951, s.10]

.

(2A)

[The Visitor shall in every case give notice to the University of his intention to cause an inspection or inquiry to be made, and the University shall be entitled to appoint a representative who shall have the right to be present and be heard at such inspection or inquiry.]

[Inserted by Act 62 of 1951, s.10]

(3)

The [Visitor]

[Substituted by Act 62 of 1951, Section 10, for " Lord Rector"]

may address the Vice-Chancellor with reference to the result of such inspection and inquiry, and the Vice-Chancellor shall communicate to the [Executive Council]

[Substituted by Act 62 of 1951, s.10, for " Court"]

the views of the [Visitor]

[Substituted by Act 62 of 1951, Section 10, for " Lord Rector"]

with such advice as the [Visitor]

[Substituted by Act 62 of 1951, Section 10, for " Lord Rector"]

may be pleased to offer upon the action to be taken thereon.

(4)

The [Executive Council]

[Substituted by Act 62 of 1951, s.10, for " Court"]

shall communicate through the Vice-Chancellor to the [Visitor]

[Substituted by Act 62 of 1951, Section 10, for " Lord Rector"]

such action, if any, as it is proposed to take or has been taken upon the result of such inspection or inquiry.

(5)

Where the [Executive Council]

[Substituted by Act 62 of 1951, s.10, for " Court"]

does not, within reasonable time, take action to the satisfaction of the [Visitor]

[Substituted by Act 62 of 1951, Section 10, for " Lord Rector"]

, the [Visitor]

[Substituted by Act 62 of 1951, Section 10, for " Lord Rector"]

may, after considering any explanation furnished or representation made by the [Executive Council]

[Substituted by Act 62 of 1951, s.10, for " Court"]

, issue such directions as he may think fit, and the [Executive Council]

[Substituted by Act 62 of 1951, s.10, for " Court"]

shall comply with such directions.

[* * *]

[Sub-section (6), ins. by the A.O. 1937, rep. by the A.O. 1948.]

(6)

[Without prejudice to the foregoing provisions of the section, the Visitor may, by order in writing, annul any proceeding of the University which is not in conformity with this Act, the Statutes or the Ordinances:

Provided that before making any such order, he shall call upon the University to show cause why such an order should not be made and, if any cause is shown within a reasonable time, shall consider the same.]

[Inserted by Act 62 of 1951, s.10]

The Visiting Board

14.

The Visiting Board.

[Rep.by the Aligarh Muslim University (Amendment) Act, 1951 (62 of 1951), s.11.]

[CHIEF RECTORS

[Substituted by Act 62 of 1951, s.12, for the original s.15.]

15.

Chief Rector and Rector.-

(1)

The Governor of the State of Uttar Pradesh shall be the Chief Rector of the University.]

(2)

Such persons as may be appointed in this behalf in accordance with the Statutes shall be the Rectors of the University.

Officers Of The University

16.

Officers to the University.-

The following shall be officers of the University:-

(1)

The Chancellor,

(2)

The Pro-Chancellor,

(3)

The Vice-Chancellor, [* * *]

[The word " and" omitted by Act 62 of 1951, s.13]

[* * * * *]

[Cl.(4) which read " The Pro-Vice-Chancellor, and" omitted by Act 11 of 1945, Section 2]

(3A)

[The Pro-Vice-Chancellor, if any;

[Inserted by Act 62 of 1951, s.13]

(3B)

The Treasurer;

(3C)

The Registrar;

(3D)

The Deans of the Faculties; and]

(4)

[]

[Original cl (5) renumbered (4) by Act 11 of 1945, s.2]

Such other officers as may be declared by the Statutes to be officers of the University.

17.

The chancellor.-

(1)

The successors to the first Chancellor shall be elected by the court

(2)

The Chancellor shall hold office for three years.

(3)

The Chancellor shall, by virtue of his office, be the head of the University.

(4)

The Chancellor shall, if present, preside at Convocations of the University held for conferring degrees and at meetings of the Court.

(5)

Every proposal for the conferment of an honorary degree shall be subject to the confirmation of the Chancellor.

18.

The Pro-Chancellor.-

(1)

The successors to the first Pro-Chancellor shall be The elected by the Court.

(2)

The Pro-Chancellor shall hold office for three years.

(3)

Casual vacancies in the office of the Pro-Chancellor shall be filled by the Chancellor on the recommendation of the Executive Council.The person so appointed shall hold office till the next annual meeting of the Court.

(4)

The Pro-Chancellor shall, in the absence of the Chancellor, exercise the functions of the Chancellor.

19.

The Vice-Chancellor.-

[(1) The successors to the Vice-Chancellor holding office at the commencement of the Aligarh Muslim University

(Amendment) Act, 1951, shall be appointed in the manner provided in the Statutes.]

[Substituted by Act 62 of 1951, s.14.]

(2)

The Vice-Chancellor shall exercise such powers and perform such functions as may be prescribed by the Statutes.
20.

The Pro-Vice-Chancellor.

Rep.by the Aligarh Muslim University (Amendment) Act 945 (11 of 1945), s.3 (with effect from 4-9-1945)

21.

Other Officers.-

The powers of officers of the University other than the Chancellor, [and the Pro-Chancellor]

[Substituted by Act 62 of 1951, s.15, for " the Pro-Chancellor and the Vice-Chancellor"]

[* * *]

[The words " and the Pro Vice-Chancellor" omitted by Act 11 of 1945, s.4}]

shall be prescribed by the Statutes [* * * *]

[The words " and the Ordinances" omitted by Act 62 of 1951, Section 15.]

Authorities Of The University

22.

Authorities of the University.-

The following shall be the authorities of the University:-

(1)

The Court,

(2)

The Executive Council,

(3)

The Academic 'Council [* * *]

[The word " and" omitted by Act 62 of 1951, s.16]

(3A)

[The Finance Committee,

(3B)

The Faculties, and]

[Inserted by by Act 62 of 1951, s.16]

(4)

Such other authorities as may be declared by the Statutes to be authorities of the University.

23.

The court.-

(1)

The Court shall consist of the Chancellor, the Pro-Chancellor, [the Vice-Chancellor and the Pro-Vice-Chancellor (if any)]

[Substituted by Act 62 of 1951, s.17, for " and the Vice-Chancellor".]

for the time being, and such other persons as may be specified in the Statutes:

[* * * *]

[The proviso omitted by Act 62 of 1951, s.17]

(2)

The Court shall be the supreme governing body of the University and shall exercise all the powers of the University, not; otherwise provided for by this Act, the Statutes, the Ordinances and the Regulations.It shall have power to review the acts of the Executive and the Academic Councils (save where such Councils have acted in accordance with powers conferred on them under this Act, the Statutes or the Ordinances)[* * *]

[Certain words omitted by Act 62 of 1951, s.17]

(3)

Subject to the provisions of this Act, the Court shall exercise the following powers and perform the following duties, namely:-

(a)

of making Statutes and of amending or repealing the same;

(b)

of considering Ordinances;

(c)

of considering and passing resolutions on the annual report, the annual accounts and the financial estimates;

(d)

of electing such persons to serve on authorities of the University and of appointing such officers as may be prescribed by this Act or the Statutes; and.

(e)

of exercising such other powers and performing such other duties as may be conferred or imposed upon it by this Act or the Statutes.

24.

The Executive Council.-

The Executive Council shall be the executive body of the University. Its constitution and the term of office of its members and its powers and duties shall be prescribed by the Statutes.

25.

The Academic Council.-

(1)

The Academic Council shall be the academic body of the University and shall, subject to the provisions of this Act, the Statutes and the Ordinances, have the control and general regulation of, and be responsible for the maintenance of standards of instruction, and for the education, examination, discipline and health of students, and for the conferment of degrees (other than honorary).

(2)

The constitution of the Academic Council and the term of office of its members and its powers and duties shall be prescribed by the Statutes.

26.

Other authorities of the University.-

The constitution, powers [and duties of the Finance Committee and the Faculties and]

[Substituted for the words "and functions of the faculties and of the students Council" by Act 62 of 1981, section 13]

of such other authorities as may be declared by the Statutes to be authorities of the University, shall be prescribed by the Statutes.

Statutes, Ordinances And Regulations

27.

[Power to make statutes.-

[Subs.by Act 34 of 1972, s.19 for the former section]

Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:-

(a)

the constitution, powers and duties of the authorities of the University;

(b)

the election and continuance in office of the members of the said authorities, including the continuance in office of the first members, and the filling of vacancies of members, and all other matters relative to those authorities for which it may be necessary or desirable to provide;

(c)

the appointment, powers and duties of the officers of the University;

(d)

the constitution of a pension or provident fund and the establishment of an insurance scheme for the benefit of the officers, teachers and other employees of the University;

(e)

the conferment of honorary degrees;

(f)

the institution of fellowships, scholarships, studentships, exhibitions, medals and prizes;

- (g)
the withdrawal of degrees, diplomas, certificates and other academic distinctions;
- (h)
the establishment and abolition of faculties, departments, halls, colleges and other institutions;
- (i)
the conditions under which Colleges and institutions may be admitted to privileges of the University and for the withdrawal of such privileges;
- (j)
the establishment of high schools and other institutions in accordance with the provisions of section 12; and
- (k)
all other matters which by this Act are to be or may be provided by the Statutes.]

28.

Statutes.-

(1)

The first Statutes are those set out in the schedule.

(2)

[The Court may, from time to time, make new or additional Statutes or may amend or repeal the Statutes in the manner hereinafter in this section provided.

(3)

The Executive Council may propose to the Court the draft of any Statute to be passed by the Court, and such draft shall be considered by the Court at its next meeting.

(4)

The Court may approve any such draft as is referred to in sub-section (3) and pass the Statute or reject it or return it to the Executive Council for reconsideration, either in whole or in part, together with any amendments which the Court may suggest:

Provided that the Executive Council shall not propose the draft of any Statute or of any amendment of a Statute affecting the status, powers or constitution of any existing authority of the University until such authority has been given an opportunity of expressing an opinion upon the proposal, and any opinion so expressed shall be in writing and shall be considered by the Court.

(5)

Any member of the Court may propose to the Court the draft of any Statute and the Court may reject the proposal or refer such draft for consideration to the Executive Council, which may either reject the proposal or submit the draft to the Court in such form as the Executive Council may approve, and the provisions of this section shall apply in the case of any draft so submitted as they apply in the case of a draft proposed to the Court by the Executive Council.

(6)

Every new Statute or addition to the Statutes or any amendment or repeal of a Statute shall require the previous approval of the Visitor who may sanction, disallow, or remit it for further consideration.]

[Substituted by Act 62 of 1951, s.20, for the former sub-section (2).]

29.

Power to make ordinances.-

[Substituted by Act 62 of 1951, s.21, for the former ss. 29 and 30]

(1)

Subject to the provisions of this Act and the Statutes, the Ordinances may provide for all or any of the following matters, namely:-

(a)

the admission of students to the University and their enrolment as such;

(b)

the courses of study to be laid down for all degrees, diplomas and certificates of the University;

(c)

the award of degrees, diplomas, certificates and other academic distinctions, the qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

- (d)
the fees to be charged for courses of study in the University and for admission to the examinations, degrees and diplomas of the University;
 - (e)
the conditions of the award of fellowships, scholarships, studentships, exhibitions, medals and prizes;
 - (f)
the conduct of examinations, including the terms of office and manner of appointment and the duties of examining bodies, examiners and moderators;
 - (g)
the maintenance of discipline among the students of the University;
 - (h)
the conditions of residence of the students of the University;
 - (i)
the special arrangements, if any, which may be made for the residence, discipline and teaching of women students and the prescribing for them of special courses of studies;
 - (j)
the giving of religious instruction;
 - (k)
the emoluments and the terms and conditions of service of teachers of the University;
 - (l)
the maintenance of high schools and other institutions in accordance with the provisions of section 12;
 - (m)
the supervision and inspection of colleges and other institutions admitted to the privileges of the University under section 12A; and
 - (n)
all other matters which by this Act or the Statutes are to be or may be provided for by the Ordinances.
- (2)
The Ordinances in force immediately before the commencement of the Aligarh Muslim University (Amendment) Act, 1951 may be amended, repealed or added to at any time by the Executive Council provided that-
- (i)
no Ordinance shall be made affecting the conditions of residence or discipline of students except after consultation with the Academic Council;
 - (ii)
no Ordinance shall be made-
- (a)
affecting the admission or enrolment of student or prescribing examinations to be recognised as equivalent to the University examinations, or
 - (b)
affecting the conditions, mode of appointment or duties of examiners or the conduct or standard examinations or any course of study, unless a draft of such Ordinance has been proposed by the Academic Council.
- (3)
The Executive Council shall not have power to amend any draft proposed by the Academic Council under the provisions of sub-section (2) but may reject the proposal or return the draft to the Academic Council for reconsideration, either in whole or in part together with any amendments which the Executive Council may suggest.
- (4)
Where the Executive Council has rejected the draft of an Ordinance proposed by the Academic Council, the Academic Council may appeal to the Central Government and the Central Government may, by order, direct that the proposed Ordinance shall be laid before the next meeting of the Court for its approval and that pending such approval it shall have effect from such date as may be specified in the order:
Provided that if the Ordinance is not approved by the Court at such meeting, it shall cease to have effect.
- (i)

All Ordinances made by the Executive Council shall be submitted, as soon as may be, to the Visitor and the Court, and shall be considered by the Court at its next meeting and the Court shall have power, by a resolution passed by a majority of not less than two-thirds of the members voting, to cancel any Ordinance made by the Executive Council, and such Ordinance shall, from the date of such resolution, cease to have effect.

(6)

The Visitor may, by order, direct that the operation of any Ordinance shall be suspended until he has had an opportunity of exercising his powers of disallowance, and any order of suspension under this sub-section shall cease to have effect on the expiration of one month from the date of such order or on the expiration of fifteen days from the date of consideration of the Ordinance by the Court, whichever period expires later.

(7)

The Visitor may, at any time after an Ordinance has been considered by the Court, signify to the Executive Council his disallowance of such Ordinance, and from the date of receipt by the Executive Council of intimation of such disallowance, such Ordinance shall cease to have effect.]

30.

[
[Omitted by Act 62 of 1951]
* * * * *]

31.

Regulations.-

(1)

The authorities of the University may make Regulations consistent with this Act, the Statutes and the Ordinances-

(a)

laying down the procedure to be observed at their meetings and the number of members required to form a quorum;

(b)

providing for all matters which by this Act, the Statutes or the Ordinances, are to be prescribed by Regulations; and

(c)

providing for all other matters solely concerning such authorities or committees appointed by them not provided for by this Act, the Statutes and the Ordinances.

(2)

Every authority of the University shall make Regulations providing for the giving of notice to the members of such authority of the dates of meetings and of the business to be considered at meetings and for the keeping of a record of the proceedings of meetings.

(3)

[The Executive Council may direct the amendment, in such manner as it may specify, of any Regulation made under this section or the annulment of any such Regulation:

Provided that any authority of the University which is dissatisfied with any such direction may appeal to the Court, whose decision in the matter shall be final.]

[Inserted by Act 62 of 1951, s.22]

Admission And Examinations

32.

Admission to the University.

Rep.by the Aligarh Muslim University (Amendment) Act, 1951 (62 of 1951), s.23.

33.

Examinations.-

(1)

All arrangements for the conduct of examinations shall be made, and all examiners shall be appointed by [the Executive Council on the recommendation of the Academic Council]

[Substituted by Act 62 of 1951, s.24, for " the Academic Council in such manner as may be prescribed by the Ordinances."

.
[* * * * *]

[Sub-section (2) omitted by Act 62 of 1951, s.24]

(3)

The Academic Council shall appoint examination committees, consisting of members of its own body or of other persons or of both, as it thinks fit, to moderate examination questions, [and to prepare and publish]

[Subs.by Act 62 of 1951, Section 24, for " to prepare"]

the results of the examinations [* * *]

[The words " and to report such results to the Executive Council for publication" omitted by Act 62 of 1951, s.24]

.

Annual Report And Accounts

34.

Annual Report.-

The annual report of the University shall be prepared under the direction of the Executive Council, and shall be submitted to the Court on or before such date as may be prescribed by the Statutes, and shall be considered by the Court at its annual meeting. The Court may pass resolutions thereon and communicate the same to the Executive Council which shall take such action thereon as it thinks fit.

35.

Annual account.-

(1)

The annual accounts and balance-sheet of the University shall be prepared under the direction of the Executive Council, and shall once at least every year and at intervals of not more than fifteen months be audited by [the Comptroller and Auditor-General of India]

[Substituted by Act 62 of 1951, Section 25, for]

.

(2)

The annual accounts when audited shall be published in the [Official Gazette]

[Substituted by the A.O. 1937 for " Gazette of India and in the local official Gazette"]

, and a copy of the accounts, together with [the report of the Comptroller and Auditor-General shall be submitted to the Visitor]

[Substituted by Act 62 of 1951, s.25, for " the auditor's report, shall be submitted through the Visiting Board to the Lord Rector."]

.

(3)

The annual accounts and the financial estimates shall be considered by the Court at its annual meeting, and the Court may pass resolutions thereon and communicate the same to the Executive Council which shall take such action thereon as it thinks fit.

Supplementary Provisions

36.

Conditions of service of officers and teachers.-

(1)

Every salaried officer and teacher of the University shall be appointed on a written contract, which shall be lodged with the University and a copy of which shall be furnished to the officer or teacher concerned.

(2)

Any dispute arising out of a contract between the University and any of its officers or teachers shall, at the request of the officer or teacher concerned, be referred to a Tribunal of Arbitration consisting of one member appointed by the Executive Council, one member nominated by the officer or teacher concerned and an umpire appointed by the [Visitor]

[Substituted by Act 62 of 1951, s.26, for " Visiting Board"]

.The decision of the Tribunal shall be final, and no suit shall lie in any Civil Court in respect of the matters decided by the Tribunal. Every such request shall be deemed to be a submission to arbitration upon the terms of this section within the meaning of the Indian Arbitration Act, 1899 (9 of 1899), and all the provisions of that Act, with the exception of section thereof, shall apply accordingly.

37.

Provident and pension funds.-

(1)

The University shall constitute for the benefit of its officers, teachers and servants such [pension or provident funds or for provide such insurance schemes]

[Subs.by Act 62 of 1951, s.27, for " provident and pension funds"]

as it may deem fit in such manner and subject to such conditions as may be prescribed by the Statutes.

(2)

Where such provident or pension fund has been so constituted, the Central Government may declare that the provisions of the Provident Funds Act, [1925 (19 of 1925)]

[{Substituted by Act 62 of 1951, s.27, for " 1897"]

, shall apply to such fund, as if it were a Government provident fund.

38.

Filling of casual vacancies.-

[* * *]

[Sub-section (1) omitted by Act 62 of 1951, Section 28]

(2)

Subject to the provisions of sub-section (3) of section 18, [* * *]

[The word " other" omitted by Act 62 of 1951, s.28]

casual vacancies in [any office or in any authority]

[Subs.by Act 62 of 1951, s.28, for " any office of any authority"]

shall he filled up by the authority which has power to appoint to the office or authority: provided that when the Court is the appointing authority the casual vacancy shall be filled by the Executive Council, and the person so appointed shall hold office till the next meeting of the Court.

39.

Proceedings of University authorities not invalidated by vacancies.-

No act or proceeding of any authority of the University shall be invalidated merely by reason of the existence of a vacancy or vacancies among its members.

40.

Power to remove difficulties.

Rep. by the Aligarh Muslim University (Amendment) Act, 1951 (62 of 1951), s.29.

41.

Appointment of Pro-Vice-Chancellor not obligatory.

Ins. by the Aligarh Muslim University (Amendment) Act, 1935 (6 of 1935), s.2; rep. by the Aligarh Muslim University (Amendment) Act, 1945 (11 of 1945), s.7 (with effect from 4-9-1945).

[THE SCHEDULE]

[Substituted for the Schedule by the Aligarh Muslim University (Amendment) Act (34 of 1972), section 32 (17-6-1972).]

[See section 28 (1)]

The Statutes of The University

1. [The Chancellor.-

[Substituted for statutes 1 and 1A by the Aligarh Muslim University (Amendment) Act (62 of 1981) section 21 (ii) (10-2-1982)]

(1) The Chancellor shall be elected by the Court by a simple majority.

(2)

The Chancellor shall hold office for a term of three years and shall be eligible for re-election.

(3)

The Chancellor shall, if present, preside over the meetings of the Court.

(4)

Every proposal for the conferment of an honorary degree shall be subject to confirmation by the Chancellor.

1A.

The Pro-Chancellor - (1) The Pro-Chancellor shall be elected by the Court by a simple majority.

(2)

The Pro-Chancellor shall hold office for a term of three years and shall be eligible for re-election.

(3)

Any casual vacancy in the office of the Pro-Chancellor shall be filled by the Chancellor on the recommendation of the Executive Council and the person so appointed shall hold office until the next annual meeting of the Court.

(4)

The Pro-Chancellor shall, in the absence of the Chancellor, perform the functions of the Chancellor.]

2. The Vice-Chancellor.-[(1) The Vice-Chancellor shall be appointed by the Visitor from a panel of at least three persons recommended by the Court from a panel of five persons recommended by the Executive Council :

Provided that if the visitor does not approve of any of the persons recommended by the Court, he may call for fresh recommendations.]

[Substituted for clauses (1) and (2) by the Aligarh Muslim University (Amendment) Act (62 of 1981), section 21 (iii)]

(3)

The Vice-Chancellor shall be a whole-time salaried officer of the University.

(4)

The Vice-Chancellor shall hold office for a term of five years from the date on which he enters upon his office and shall be eligible for re-appointment for not more than another term :

Provided that notwithstanding the expiry of the said period of five years, he shall continue in office until his successor is appointed and enters upon his office :

Provided further that the Visitor may direct that a Vice-Chancellor, whose term of office has expired, shall continue in office for such period, not exceeding a total period of one year, as may be specified in the direction.

(5)

Notwithstanding anything contained in clause (4), a person appointed as Vice-Chancellor shall, if he completes the age of sixty-five years during the term of his office or any extension thereof, retire from office.

(6)

The emoluments and other terms and conditions of service of the Vice-Chancellor shall be such as may be prescribed by the Ordinances.

(7)

If the office of the Vice-Chancellor becomes vacant due to his death, resignation or otherwise or if he is unable to perform his duties owing to absence, illness or any other cause, the Pro-Vice-Chancellor shall discharge the duties of the Vice-Chancellor until a new Vice-Chancellor assumes office :

Provided that if the Pro Vice-Chancellor is not available, the senior-most Professor shall discharge the duties of the Vice-Chancellor until a new Vice-Chancellor assumes office.

3. Powers and duties of the Vice-Chancellor.- (1) The Vice-Chancellor shall be the ex-officio Chair-man of the Court, the Executive Council, the Academic Council and the Finance Committee, and shall, in the absence of the Chancellor and the Pro-Chancellor, preside at the Convocation held for conferring degrees. He shall be entitled to be present at, and to address, any meeting of any authority or other body of the University, but shall not be entitled to vote thereat unless he is a member of such authority or body.

(2)

It shall be the duty of the Vice-Chancellor to see that the Act, the Statutes, the Ordinances and the Regulations are duly observed, and he shall have all powers necessary to ensure such observance.

(3)

The Vice-Chancellor shall have the power to convene or cause to be convened meetings of the Court, the Executive Council, the Academic Council and the Finance Committee.

4. Pro-Vice-Chancellor.- (1) The Pro-Vice-Chancellor shall be appointed by the Executive Council on the recommendation of the Vice-Chancellor on such terms and conditions as may be laid down in the Ordinances :

Provided that where the recommendation of the Vice-Chancellor is not accepted by the Executive Council, the matter shall be referred to the Visitor who may either appoint the person recommended by the Vice-Chancellor or ask the Vice-Chancellor to recommend another person to the Executive Council :

Provided further that the Executive Council may, on the recommendation of the Vice-Chancellor appoint a Professor to discharge the duties of the Pro-Vice-Chancellor in addition to his own duties as a Professor.

(2)

The term of office of the Pro-Vice-Chancellor shall be such as may be decided by the Executive Council, but it shall not in any case exceed five years or until the expiration of the term of office of the Vice-Chancellor whichever is earlier and shall be eligible for re-appointment :

Provided that the Pro-Vice-Chancellor shall retire on attaining the age of sixty-years.

(3)

The emoluments and other terms and conditions of service of the Pro-Vice-Chancellor shall be such as may be prescribed by the Ordinances.

(4)

The Pro-Vice-Chancellor shall assist the Vice-Chancellor in respect of such matters as may be specified by the Vice-Chancellor in this behalf from time to time and shall also exercise such powers and perform such duties as may be assigned or delegated to him by the Vice-Chancellor.

4A.

[Honorary Treasurer -

[Inserted by the Aligarh Muslim University (Amendment) Act (62 of 1981), section 21 (iv) (10-2-1982).]

(1) The Honorary Treasurer shall be elected by the Court by a simple majority.

(2)

The Honorary Treasurer shall hold office for a term of three years and shall be eligible for re-election for another term.

(3)

The Honorary Treasurer shall hold office on such terms and conditions as may be prescribed by the Ordinances.

(4)

The Honorary Treasurer shall be a member of the Finance Committee and shall exercise general supervision over the funds of the University.]

5. Registrar.- (1) The Registrar shall be a whole time salaried employee of the University and shall be appointed on the recommendation of a Selection Committee constituted for the purpose.

(2)

The emoluments and other terms and conditions of service of the Registrar shall be such as may be prescribed by the Ordinances :

Provided that the Registrar shall retire on attaining the age of sixty years:

Provided further that notwithstanding his attaining the age of sixty years, he shall continue in office until his successor is appointed and enters upon his office.

(3)

When the office of the Registrar is vacant or when the Registrar is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(4)

(a)

The Registrar shall have power to take disciplinary action against such of the employees of the University as may be specified in the orders of the Executive Council and to suspend them pending inquiry, to administer warnings to them or to impose on them the penalty of censure or the withholding of increment:

Provided that no such penalty shall be imposed unless the person concerned has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(b)

An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in item (a).

(c)

In a case where the inquiry discloses that a punishment beyond the powers of the Registrar is called for, the Registrar shall, upon conclusion of the inquiry, make a report to the Vice-Chancellor along with his recommendations :

Provided that an appeal shall lie to the Executive Council against an order of the Vice-Chancellor imposing any penalty.

(5)

The Registrar shall be ex-officio Secretary of the Executive Council, the Academic Council and the Faculties, but shall not be deemed to be a member of any of these authorities. He shall be ex-officio Member-Secretary of the Court.

(6)

It shall be the duty of the Registrar,

(a)

to be the custodian of the records, the common seal and such other property of the University as the Executive Council shall commit to his charge;

(b)

to issue all notices convening meetings of the Court, Executive Council, Academic Council and Faculties, the Boards of Studies, the Boards of Examiners and of any committees appointed by the authorities of the University;

(c)

to keep the minutes of all the meetings of the Court, Executive Council, Academic Council, Faculties and of any committees appointed by the authorities of the University;

(d)

to conduct the official correspondence of the Court, Executive Council and Academic Council;

(e)

to arrange for and superintend the examinations of the University in accordance with the manner prescribed by the Ordinances;

(f)

to supply to the Visitor, copies of the agenda of the meetings of the authorities of the University as soon as they are issued and the minutes of the meetings;

(g)

to represent the University in suits or proceedings by or against the University, sign powers of attorney and verify pleadings or depute his representative for the purpose; and

(h)

perform such other duties as may be specified in these Statutes, or prescribed by the Ordinances or the Regulations or as may be required, from time to time, by the Executive Council or the Vice-Chancellor.

6. Finance Officer - (1) The Finance Officer shall be a whole time salaried employee of the University and shall be appointed on the recommendations of a Selection Committee constituted for the purpose on such terms and conditions as may be prescribed by the Ordinance :

Provided that a person appointed as a Finance Officer shall retire from office when he attains the age of 60 years :

Provided further that notwithstanding his attaining the age of 60 years, he shall continue in office until his successor is appointed and enters upon his office or for a period of one year whichever is earlier.

(2)

When the office of the Finance Officer is vacant or when the Finance Officer is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(3)

The Finance Officer shall be ex-officio Secretary of the Finance Committee, but shall not be deemed to be a member of such Committee.

(4)

[The Finance Officer shall advise the University as regards its financial policy and perform such other financial functions as may be assigned to him by the Executive Council or as may be prescribed by these Statutes or the Ordinances :

Provided that the Finance Officer shall not incur any expenditure or make any investment exceeding ten thousand rupees without the previous approval of the Executive Council.]

[Substituted by the Aligarh Muslim University (Amendment) Act (61 of 1981), section 21(v) (10-2-1982).]

(5)

Subject to the control of the Executive Council, the Finance Officer shall

(a)

hold and manage the property and investments including trust and endowed property;

(b)

ensure that the limits fixed by the Finance Committee for recurring and non-recurring expenditure for a year are not exceeded and that all moneys are expended on the purposes for which they are granted or allotted;

(c)

be responsible for the preparation of annual accounts and the budget of the University for the next financial year and for their presentation to the Executive Council;

(d)

keep a constant watch on the state of the cash and bank balances and on the state of investment;

(e)

watch the progress of the collection of revenue and advise on the methods of collection employed;

(f)

have the accounts of the University regularly audited by an internal audit party;

(g)

ensure that the registers of buildings, land, furniture and equipment are maintained up-to-date and that the stock-checking is conducted, of equipment and other consumable materials in all offices, Special Centres, Specialised Laboratories, colleges and institutions maintained by the University;

(h)

call for explanation for unauthorised expenditure and for other financial irregularities and suggest disciplinary action against the persons at fault; and

(i)

call for from any office, college or institution under the University, any information or returns that he may consider necessary for the performance of his duties.

(6)

The receipt of the Finance Officer of the person or persons duly authorised in this behalf by the Executive Council for any money payable to the university shall be sufficient discharge for payment of such money.

7. Deans of Faculties.- (1) Every Dean of a Faculty shall be appointed by the Vice-Chancellor from among the Professors in the Faculty for a period of three years and shall be eligible for re-appointment :

Provided that a Dean on attaining the age of sixty years shall cease to hold office as such :

Provided further that the persons holding office as Principal of the Jawaharlal Nehru Medical College and the Zakir Hussain Engineering College on the commencement of the Aligarh Muslim University (Amendment) Act, 1972, shall continue to hold the office of the Deans of their respective Faculties until the expiry of their term of office.

(2)

When the office of the Dean is vacant or when the Dean is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(3)

The Dean shall be the Head of the Faculty and shall be responsible for the conduct and maintenance of the standards of teaching and research in the Faculty. He shall have such other functions as may be prescribed by the Ordinances.

(4)

The Dean shall have the right to be present and to speak at any meeting of the Board of Studies or committee of the Faculty, as the case may be, but not the right to vote thereat unless he is a member thereof.

8. [Chairmen of Departments]

[Substituted by Act 62 of 1981 of word " Head of Department"]

.- In the case of Departments which have more than one Professor, the [Chairmen of Departments]

[Substituted by Act 62 of 1981 of word " Head of Department"]

shall be appointed by the Executive Council on the recommendation of the Vice-Chancellor from among the Professors. In the case of Departments where there is only one Professor, the Executive Council shall have the option to appoint on the recommendation of the Vice-Chancellor, either the Professor, or a Reader as the [Chairmen of Departments]

[Substituted by Act 62 of 1981 of word " Head of Department"]

. A person appointed as the [Chairmen of Departments]

[Substituted by Act 62 of 1981 of word " Head of Department"]

shall hold office as such for a period of three years and shall be eligible for re-appointment. A [Chairmen of Departments]

[Substituted by Act 62 of 1981 of word " Head of Department"]

may resign his office at any time during his tenure or also to decline the offer of appointment as the [Chairmen of Departments]

[Substituted by Act 62 of 1981 of word " Head of Department"]

9. [* * *]

[Statute 9 omitted by the Aligarh Muslim University (Amendment) Act (62 of 1981), section 21(vi) (10-2-1982).]

10. Dean of Students' Welfare.- (1) The Dean of Students' Welfare shall be appointed from amongst the teachers of the University not below the rank of a Reader, by the Executive Council on the recommendation of the Vice-Chancellor.

(2)

The Dean so appointed under clause (1) shall be a whole time officer and shall hold office for a term of three years and shall be eligible for reappointment :Provided that the Executive Council may, if it is considered necessary, appoint, on the recommendation of the Vice-Chancellor, a teacher, not below the rank of a Reader to discharge the duties of the Dean of Students' Welfare in addition to his duties and in such a case the Executive Council may sanction a suitable allowance.

(3)

The person who is appointed as the Dean of Students' Welfare shall continue to hold his lien on his substantive post and shall be eligible to all the benefits that would have otherwise accrued to him but for his appointment as Dean of Students' Welfare.

(4)

When the office of the Dean of Students' Welfare is vacant or when the Dean of Students' Welfare is, by reason of illness or absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(5)

The duties and powers of the Dean of Students' Welfare shall be prescribed by the Ordinances.

11. Provost. - (1) A Provost shall be appointed by the Executive Council on the recommendation of the Vice-Chancellor and shall exercise such powers and perform such duties as may be assigned to him by the Vice-Chancellor.

(2)

A Provost shall hold office for a term of two years and shall be eligible for reappointment.

12. Proctor. - (1) The Proctor shall be appointed by the Executive Council on the recommendation of the Vice-Chancellor and shall exercise such powers and perform such duties as may be assigned to him by the Vice-Chancellor.

(2)

The Proctor shall hold office for a term of two years and shall be eligible for re-appointment.

13. Librarian.- (1) The Librarian shall be appointed by the Executive Council on the recommendation of a Selection Committee constituted for the purpose and shall be a whole-time officer of the University.

(2)

The Librarian shall be the [Chairmen of Departments]

[Substituted by Act 62 of 1981 of word " Head of Department"]

of Library Science and shall exercise such powers and perform such duties as may be assigned to him by the Executive Council.

14. [Court.-

[Substituted for Status 14 by the Aligarh Muslim University Act 62 of 1981, Section 21(vii) (10-2-1982)]

(1) The Court shall consist of the following members, namely-

Ex-officio members

(i)

Chancellor;

(ii)

Pro-Chancellor,

(iii)

Vice-Chancellor,

(iv)

Pro-Vice-Chancellor;

(v)

Honorary Treasurer,

(vi)

All Ex-Vice-Chancellors;

(vii)

All Deans of Faculties;

(viii)

Dean of Student Welfare;

(ix)

Librarian;

(x)

Registrar;

(xi)

Five Provosts by rotation according to seniority;

(xii)

Proctor;

Representatives of the Departments and Colleges

(xiii)

Twenty Chairmen of Departments, by rotation according to seniority;

(xiv)

Principals of Colleges;

Representatives of teachers other than Chairman of Departments and Principals of Colleges

(xv)

Two Professors, who are not Chairmen of Departments, to be elected from amongst themselves;

(xvi)

Three Readers to be elected from amongst themselves;

(xvii)

Five Lecturers to be elected from amongst themselves;

Representatives of Schools maintained by the University

(xviii)

Two Principals of Schools maintained by the University by rotation according to seniority;

Representatives of non-teaching staff

(xix)

Five representatives of non-teaching staff, to be elected from amongst themselves.

Representatives of ex-students

(xx)

Twenty-five representatives of ex-students to be elected by the Alumini (Old Boys) Association;

Representative of donors

(xxi)

Ten representatives of donors who have donated at least a sum of ten thousand rupees or transferred property worth at least ten thousand rupees to the University, to be elected from amongst themselves;

Representatives of learned professions, Industry and commerce

(xxii)

The persons

representing the learned professions, industry and commerce, to be elected by the Court;

Representatives of the AU-India Muslim Education Conference

(xxiii)

Five representatives of the All-India Muslim Education Conference; Representatives of Parliament

(xxiv)

Ten members of Parliament, six to be elected by the House of the People (Lok Sabha) from amongst its members and

four to be elected by the Council of State (Rajya Sabha) from amongst its members;
Representatives of Muslim culture and learning

(xxv)

Fifteen persons representing Muslim culture and learning to be elected by the Court, of whom ten shall be persons residing outside the State of Uttar Pradesh;

(xxvi)

Six persons representing Muslim College of Oriental Learning in India, to be elected by the Court;

(xxvii)

Four persons from amongst the Chairman (including Presidents) of the Wakf Boards constituted under the Wakf Act, 1954 (29 of 1954), or under any other law in force in a State, to be elected by the Court;

(xxviii)

Two persons representing Urdu Language and literature, to be elected by the Court;

(xxix)

Five persons representing Muslim Educational and Cultural Societies situated outside the State of Uttar Pradesh, to be elected by the Court;

Representatives of students

(xxx)

(a)

President, Vice-President, Secretary and one nominee of the Executive Council of the Students Union ex-officio;

(b)

Eleven students to be elected by a simple majority by students of the various faculties classified into groups in the manner prescribed by the Ordinances;

Nominated persons

(xxxi)

Five persons to be nominated by the Visitor;

(xxxii)

One person to be nominated by the Chief Rector;

(xxxiii)

One person to be nominated by the Chancellor;

Provided that in making nominations under items (xxxi) to (xxxii), due regard shall be had to the representation of the different areas of the country in view of the All-India character of the University;

Provided further that no employee of the University shall be eligible to be a member under items (xx) to (xxix) or under items (xxxi) to (xxxiii).

(2)

All the members of the Court, other than ex-officio members and members representing students, shall hold office for a term of three years.

(3)

An ex-officio member shall cease to be a member of the Court as soon as he vacates the office by virtue of which he is such a member.

(4)

Members representing students shall hold office for a period of one year or till such time as they continue to be students, whichever is earlier.]

15. Meetings of the Court. -(1) An annual meeting of the Court shall be held on a date to be fixed by the Executive Council unless some other date has been fixed by the Court in respect of any year. At an annual meeting, a report of the working of the University during the previous year, together with a statement of the receipts and expenditure and the balance sheet, as audited, and the financial estimates for the next year shall be presented and any vacancies among the members of the Executive Council which are to be filled up by the Court shall be filled.

(2)

A copy of the statement of receipts and expenditure, the balance sheet and the financial estimates referred to in clause (1) shall be sent to every member of the Court at least seven days before the date of the annual meeting.

(3)

[One-third of the members of the Court shall form a quorum for a meeting of the Court.]

[Substituted for Cl. (3) by the Aligarh Muslim University (Amendment) Act (62 of 1981), Section 21(viii)(a) (10-2-1982).]
(4)

Special meetings of the Court may be convened by the Executive Council or the Vice-Chancellor, or, if there is no Vice-Chancellor, by the Pro-Vice-Chancellor, or if there is no Pro-Vice-Chancellor by the Registrar :

Provided that a special meeting of the Court shall also be called if [one-third of the members]

[Substituted for the words " thirty five members" by the Aligarh Muslim University (Amendment) Act (62 of 1981), Section 21(viii)(b).]

of the Court make a requisition in writing in this behalf.

16. [Executive Council.-

[Substituted for statute 16 by the Aligarh Muslim University (Amendment) Act (62 of 1981), Section 21 (ix) (10-2-1982)]

(1) The Executive Council shall consist of the following members, namely :

(i)

Vice-Chancellor;

(ii)

Pro-Vice-Chancellor;

(iii)

Honorary Treasurer;

(iv)

Five Deans of Faculties, by rotation according to seniority;

(v)

Two Principals of Colleges, other than the Principal of the Women's College, by rotation according to seniority;

(vi)

Principal, Women's College;

(vii)

One Provost, by rotation according to seniority;

(viii)

Proctor;

(ix)

Six Members of the Court, none of whom shall be an employee of the University, to be elected from amongst themselves;

(x)

Two representatives of Professors and Readers to be elected from amongst themselves;

(xi)

Two representatives of Lecturers to be elected from amongst themselves;

(xii)

Three persons to be nominated by the Visitor;

(xiii)

One person to be nominated by the Chief Rector;

Provided that no employee of the University shall be eligible for nomination under items (xii) and (xiii).

(2)

All the members of the Executive Council, other than ex-officio members, shall hold office for a term of three years.

(3)

Fifteen members of the Executive Council shall form a quorum for a meeting of the Executive Council.]

17. Powers and functions of Executive Council.- (1) The Executive Council shall have the management and administration of the revenue and property of the University and the conduct of all administrative affairs of the University not otherwise provided for.

(2)

Subject to the provisions of the Act, the Statutes and the Ordinances, the Executive Council shall, in addition to all other powers vested in it, have the following powers, namely :

(i)

to appoint the Registrar, Finance Officer, Librarian, Principals of Colleges and institutions established by the University and such Professors, Readers, Lecturers and other members of the teaching and academic staff as may be necessary, on the recommendation of the Selection Committee constituted for the purpose :

Provided that no action shall be taken by the Executive Council in respect of the number, qualifications and the emoluments of teachers, without consideration of the recommendations of the Academic Council; Schedule, Statute 17

(ii)

to appoint members of the administrative staff;

(iii)

to grant leave of absence to any officer of the University, other than the Chancellor, and the Vice-Chancellor, and to make the necessary arrangements for the discharge of the functions of such officer during his absence;

(iv)

to regulate and enforce discipline among members of the teaching, administrative and other staff of the University in accordance with these Statutes and the Ordinances;

(v)

to manage and regulate the finances, accounts, investments, property, business and all other administrative affairs of the University, and for that purpose, to appoint such agents as it may think fit;

(vi)

to invest any money belonging to the University including any applied income, in such stocks, funds, shares or securities as it shall, from time to time, think fit, or in the purchase of immovable property in India, with the like power of varying such investments from time to time;

(vii)

to transfer or accept transfers of any movable or immovable property on behalf of the University;

(viii)

to provide the buildings premises, furniture and apparatus and other means needed for carrying on the work of the University;

(ix)

to enter into, vary, carry out and cancel contracts on behalf of the University;

(x)

to entertain, adjudicate upon, and, if thought fit, to redress any grievances of the officers of the University, the teaching staff, the students and the University's servants, who may, for any reason feel aggrieved;

(xi)

to appoint examiners and moderators and, if necessary to remove them, and to fix their fees, emoluments and travelling and other allowances, after consulting the Academic Council;

(xii)

to maintain a register of donors to the University;

(xiii)

to select a common seal for the University and provide for the custody and use of such seal;

(xiv)

to make such special arrangements as may be necessary for the residence and discipline of women students;

(xv)

to delegate any of its powers to the Vice-Chancellor, Pro-Vice-Chancellor, the Registrar or the Finance Officer or such other employee or authority of the University or to a Committee appointed by it as it may deem fit;

(xvi)

to institute fellowships, scholarships, studentships, medals and prizes; and

(xvii)

to exercise such other powers and perform such other duties as may be conferred or imposed on it by the Act or the Statutes.

18. Academic Council.- (1) The Academic Council shall consist of the following members, namely :-

(i)

Vice-Chancellor;

(ii)

Pro-Vice-Chancellor;

(iii)

Deans of Faculties;

(iv)

[Chairman]

[Substituted for the word " Heads" by the Aligarh Muslim University (Amendment) Act (62 of 1981), Section 21(x)(a)(1) (10-2-1982).]

of Departments of Studies;

(v)

Principals and [Chairman]

[Substituted for the word " Heads" by the Aligarh Muslim University (Amendment) Act (62 of 1981), Section 21(x)(a)(1) (10-2-1982).]

of, institutions;

(vi)

Dean of Students' Welfare;

(vii)

[* * * *]

[Item (vii) omitted by Act 62 of 1981, Section 21(x)(a)(2) (10-2-1982)]

(viii)

Librarian;

(ix)

Five professors other than the [Chairmen of Departments;]

[Inserted by Act 62 of 1981, Section 21(x)(b) (10-2-1982).]

(x)

Five readers other than the [Chairmen of Departments;]

[Inserted by Act 62 of 1981, Section 21(x)(b) (10-2-1982).]

(xi)

Five lecturers;

(xii)

Five persons not being in the service of the University, co-opted by the Academic Council for their special knowledge, provided that not more than two persons shall be co-opted from subjects as-signed to any one faculty;

(xiii)

[The President, Students' Union;

[Inserted by Act 62 of 1981, Section 21(x)(a)(3) (10-2-1982).]

(xiv)

Two post-graduate students, one research student and one under-graduate student, to be elected by the students from amongst themselves :

Provided that no student-member of the Academic Council shall participate in the discussions in respect of matters relating to examinations, Selection Committees, appointment and conditions of service of the teaching staff.]

Group I

(a)

Faculty of Arts;

(b)

Faculty of Social Sciences;

Group II

(a)

Faculty of Science,

(b)

Faculty of Medicine,

(c)

Faculty of Engineering and Technology;

Group III

(a)

Faculty of Theology,

(b)

Faculty of Commerce,

(c)

Faculty of Law.

(2)

The members of the Academic Council, other than ex-officio members [and student-members]

[Inserted by Act 62 of 1981, Section 21(x)(b) (10-2-1982).]

shall hold office for a term of two years.

(2A)

[The President, Students' Union shall hold office for so long as he continues to hold the office of the President, Students' Union, and every other student-member shall hold office for a period of one year :

Provided that a student-member shall cease to hold office upon his ceasing to be a student of the University.]

[Inserted by Act 62 of 1981, Section 21(x)(c) (10-2-1982).]

19. Powers of the Academic Council.- Subject to the Act, the Statutes and the Ordinances, the Academic Council shall, in addition to all other powers vested in it, have the following powers, namely :-

(a)

to exercise general supervision over the academic policies of the University and to give directions regarding methods of instruction, co-operative teaching among colleges, evaluation of research or improvements in academic standards;

(b)

to bring about inter-faculty co-ordination, to establish or appoint committees or Boards, for taking up projects on an inter-faculty basis; '

(c)

to consider matters of general academic interest either at its own initiative or referred to by a faculty, or the Executive Council and to take appropriate action thereon; and

(d)

to frame such regulations and rules consistent with the Statutes and Ordinances regarding the academic functioning of the University, discipline, residence, admissions, award of fellowships and studentships, fee concessions, corporate life and attendance.

20. Faculties and Departments. - (1) The University shall have the following Faculties, namely

(i)

Faculty of Theology;

(ii)

Faculty of Arts;

(iii)

Faculty of Science;

(iv)

Faculty of Social Sciences;

(v)

Faculty of Engineering and Technology;

(vi)

Faculty of Medicine;

(vii)

Faculty of Law;

(viii)

Faculty of Commerce; and

(ix)

Such other Faculties as may be prescribed by these Statutes.

(2)

(a)

Each Faculty shall consist of such Departments as may be assigned to it by the Ordinances.

(b)

No Department shall be established or abolished except by the Statutes.

(c)

The Departments of Studies in existence in the University at the commencement of the Aligarh Muslim University (Amendment) Act, 1972 and the Faculties relating thereto are set out in the Annexure to these Statutes.

(d)

Each Department shall consist of the following members, namely :-

(i)

teachers;

(ii)

Persons conducting research in the Faculties concerned;

(iii)

Dean of the Faculty or Deans of the Faculties concerned;

(iv)

Honorary Professors, if any, attached to Department; and

(v)

Such other persons as may be members of the Department in accordance with the provisions of the Ordinances.

(e)

Each Department shall have a [chairman]

[Word " head" to be read as " chairman" in view of Section 21 of the Aligarh Muslim University (Amendment) Act (62 of 1981)]

who shall be appointed in accordance with these Statutes and shall perform such functions as may be prescribed by the Ordinances.

(3)

Every Faculty, other than the Faculty of Engineering and Technology, may comprise the following members, namely :

(i)

Dean of Faculty who shall be the Chairman;

(ii)

All Professors in the Faculty;

(iii)

All Chairmen of Departments assigned to the Faculty who are not Professors;

(iv)

Principal, Women's College;

(v)

One Reader from each Department;

(vi)

Two Lecturers from each Department (one above ten years of service and one below ten years);

(vii)

Four persons nominated by the Academic Council from other Faculties of the University; and

(viii)

Five persons not in the service of the University co-opted by the Faculty for their special knowledge of any subject assigned to the faculty, provided that not more than one person may be co-opted in respect of a subject assigned to a single Department:

Provided that the Principal, Women's College shall be on the Faculties of the subjects for which instruction is provided in that College :

Provided further that the Readers and Lecturers of categories (v) and (vi) shall serve on the Faculties by rotation, according to seniority.

(4)

The Faculty of the Engineering and Technology shall consist of the following members, namely :-

- (i)
Dean of the Faculty, who shall be the Chairman;
 - (ii)
Head of the University Polytechnic;
 - (iii)
All Professors in the Faculty;
 - (iv)
One Reader and one Lecturer by rotation according to seniority from each Department or Section in the Faculty;
 - (v)
Not more than three Readers from the University Polytechnic;
 - (vi)
One Lecturer at the University Polytechnic, by rotation according to seniority;
 - (vii)
Persons not connected with the University having expert knowledge of the subject or subjects concerned, co-opted by the Faculties; one for each Department of the Faculty; and
 - (viii)
Three members selected by the Academic Council for their special knowledge of any subject assigned to the Faculty or of any allied branches of knowledge.
- (5)
All members of a Faculty, other than the ex-officio members shall hold office for a term of two years.
- (6)
The conduct of the meetings of a Faculty and the quorum required for each Faculty shall be prescribed by the Ordinances.
21. Powers and functions of the Faculties.- In addition to the powers and functions of the Faculties prescribed under the Ordinances, they shall have power
- (a)
to co-ordinate teaching and research activities of Departments and Centres assigned to the Faculty, and to promote and provide for inter-disciplinary teaching and research; and to arrange for examinations and periodical tests in subjects falling within the purview of the faculty;
 - (b)
to appoint Boards of Studies or committees or to undertake research projects common to more than one Department;
 - (c)
to approve courses of study proposed by the Departments;
 - (d)
to forward to the Executive Council the recommendation of the Boards of Studies or Committee for Advanced Studies and Research;
 - (e)
to propose the draft of Ordinances for the examinations for courses conducted by the Faculty;
 - (f)
to recommend proposals for the creation and abolition of teaching posts; and
 - (g)
to perform such other functions as the Executive Council and Academic Council may prescribe.
22. Boards of Studies.- (1) Each Department shall have a Board of Studies which shall consist of :
- (i)
the Head of the Department-Chairman;
 - (ii)
Dean of the Faculty concerned;
 - (iii)
the Professors in the Department;
 - (iv)
four Readers in the Department by rotation according to seniority;

(v)

four Lecturers in the Department, at least two of whom shall be with less than seven years of service by rotation according to seniority;

(vi)

two persons teaching allied or cognate subjects in the University assigned by the Academic Council; and

(vii)

two experts not in the service of the University co-opted by the Board of Studies.

(2)

The term of appointment of members other than the ex-officio members of the Boards of Studies shall be for a period of two years.

(3)

The functions of the Board of Studies shall be to recommend to the Faculty in the manner provided in the Ordinances

(a)

courses of studies and appointment of examiners for under-graduate and post-graduate courses, but excluding search degrees;

(b)

approve subjects for research for various degrees and other requirements of research degrees;

(c)

appointment of supervisors of research; and

(d)

measures for the improvement of the standard of post-graduate teaching and research :

Provided that where the number of teachers in a Department does not exceed twenty, the aforesaid functions shall be performed by the Department.

23. Departmental Committees.- (1) Each teaching department, where the number of teachers exceeds twenty shall have a Departmental Committee consisting of the following members, namely.

(i)

Head of the Department-Chairman;

(ii)

Dean of the Faculty concerned;

(iii)

Professors in the Department;

(iv)

Four Readers in the Department by rotation according to seniority; and

(v)

Four Lecturers in the Department by rotation according to seniority.

(2)

The Readers and Lecturers shall hold office as members of the Departmental Committee for a period of two years.

(3)

The functions of the Departmental Committee shall be to allocate teaching work, recommend the creation or abolition of teaching posts or their upgrading, make recommendations regarding the field of study of each post at the time of recruitment and consider matters of general and academic interest to the Department and of its functioning.

(4)

Where the number of teachers in a teaching Department does not exceed twenty, the functions of the Departmental Committee shall be performed by that Department.

24. [* * *]

[Statute 24 omitted by the Aligarh Muslim University (Amendment) Act (62 of 1981), Section 21(xi) (10-2-1982).]

25. [* * * *]

[Statute 25 omitted by the Aligarh Muslim University (Amendment) Act (62 of 1981), Section 21(xi) (10-2-1982).]

26. Finance Committee.- (1) The Finance Committee shall consist of the following members, namely :

(i)

Vice-Chancellor;

(ii)

Pro-Vice-Chancellor;

(iii)

Two Deans of the Faculties, to be nominated by the Executive Council;

(iv)

One person nominated by the Executive Council from amongst its members other than those in the service of the University;

(v)

Three persons nominated by the Visitor.

(2)

Five members of the Finance Committee shall form a quorum for a meeting of the Finance Committee.

(3)

All members of the Finance Committee, other than ex-officio members, shall hold office for a term of three years.

(4)

The Vice-Chancellor shall preside at the meetings of the Finance Committee.

(5)

A member of the Finance Committee shall have the right to record a minute of dissent if he does not agree with any decision of the Finance Committee.

(6)

The Finance Committee shall meet at least twice every year to examine the accounts and to scrutinise proposals for expenditure.

(7)

The annual accounts and the Financial estimates of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments and thereafter submitted to the Executive Council for approval.

(8)

The Finance Committee shall fix limits for the total recurring expenditure and the total non-recurring expenditure for the year, based on the income and resources of the University (which, in the case of productive works, may include the proceeds of loans). No expenditure shall be incurred by the University in excess of the limits so fixed.

(9)

No expenditure other than that provided for in the budget shall be incurred by the University without the approval of the Finance Committee.

27. Selection Committees. - (1) The Selection Committee for appointment to the posts specified in column (1) of the Table below shall consist of the Vice-Chancellor, the Pro-Vice-Chancellor, a nominee of the Visitor and the persons specified in the corresponding entry in column (2) of the said Table :

Provided that where the appointment of a teacher is to be made in a College or the University Polytechnic, the Principal of that College or the University Polytechnic, as the case may be, shall also be an ex-officio member of the Selection Committee constituted for such appointment :

Provided further that the Selection Committee for teaching posts in the Faculty of Engineering and Technology shall include a nominee of the All India Council of Technical Education.

(1)

(2)

Professor

(i) The [Chairman of the Department]

[Substituted by Act 62 of 1981, section 21(i) for the word " Head of Department"]

concerned, if he is a Professor.

(ii) One Professor of the Department to be nominated by the Vice-Chancellor.

(iii) Three persons not in the service of the University nominated by the Executive Council, out of a panel of names recommended by the Academic Council for their special knowledge of or interest in the subject with which the Professor will be concerned.

Reader/Lecturer

(i) The [Chairman of the Department]

[Substituted by Act 62 of 1981, section 21(i) for the word " Head of Department"]
concerned.

(ii) One Professor of the Department to be nominated by the Vice Chancellor.

(iii) Two persons not in the service of the University nominated by the Executive Council, out of a panel of names recommended by the Academic Council for their special knowledge of or interest in the subject with which the Reader or Lecturer will be concerned.

Registrar/Finance Officer

(i) Two members of the Executive Council nominated by it.

(ii) One person, not connected with the University, nominated by the Executive Council

Librarian

(i) Two persons not in the service of the University, who have special knowledge of the subject of Library Science/Library Administration to be nominated by the Executive Council.

(ii) One person, not in the service of the University, nominated by the Executive Council.

Principal of College or Institution maintained by University

Three persons not in the service of the University, of whom two shall be nominated by the Executive Council and one by the Academic Council for their special knowledge of or interest in a subject in which instruction is being provided by the College or Institution.

(2)

The Vice-Chancellor, or in his absence, the Pro-Vice-Chancellor, shall preside at the meetings of the Selection Committee.

(3)

The meetings of the Selection Committee shall be convened by the Vice-Chancellor or in his absence, by the Pro-Vice-Chancellor.

(4)

The procedure to be followed by a Selection Committee in making recommendations shall be laid down in the Ordinances.

(5)

If the Executive Council is unable to accept the recommendations made by the Committee, it shall record its reasons and submit the case to the Visitor for final orders.

(6)

Notwithstanding anything contained in the foregoing clauses of this Statute or Statute 29, the Executive Council may invite a person of high academic distinction and professional attainment to accept a post of Professor or Reader in the University, as the case may be, on such terms and conditions as it deems fit, and on the person agreeing to do so, appoint him to the post.

(7)

The Executive Council of the University may appoint a teacher or any other academic staff working in any other University or institution for undertaking a joint project in accordance with the manner prescribed in the Ordinances.

Note 1.- When the appointment is being made for an inter-disciplinary project, the Head of the project shall be deemed to be the Chairman of the Department concerned.

Note 2.- The Professor shall be concerned with the speciality for which the selection is being made and that the Vice-Chancellor shall consult the Chairman of the Department and the Dean of Faculty before nominating the Professor.

28. Committees Any authority of the University may appoint as many standing or special committees as it may deem fit, and may appoint to such committees persons who are not members of such authority.

Any such committee may deal with the subject delegated to it subject to subsequent confirmation by the authority appointing it.

29. Terms and conditions of service of teachers.- (1) All the teachers of the University or any of its Institutions shall, in the absence of any agreement to the contrary, be governed by the terms and conditions of service as specified in the Statutes, Ordinances and Regulations of the University :

Provided that no alteration in the salary, the rate of contribution to the Provident Fund and the age of superannuation of teacher in the service of the University shall be made to his disadvantage except with the previous approval of the Visitor.

(2)

(a)

All appointments to permanent posts of teachers in the University shall be made by the Executive Council on the recommendation of a Selection Committee in accordance with the provisions of these Statutes after such posts have been duly advertised and the candidates concerned have been interviewed by the Selection Committee, except in cases where such Committee decides to consider the case of a candidate otherwise than by an interview. Except as otherwise provided for in his contract of service, every teacher thus selected shall be placed on probation for a period of one year, on the expiry of which period he may be confirmed in his post. If he is not so confirmed, the Executive Council may, if it deems fit, dispense with his services after the expiry of his probationary period as may be practicable or extend the period of his probation for one year at the end of which, if he is not confirmed in his post, his services shall be dispensed with after the expiry of the period of extension of his probation :

Provided that, if a person in the permanent service of the University is appointed on probation to a higher post in the same department, he shall not lose his lien on his substantive post, nor shall he be deprived of the benefits of leave rules and of the Provident Fund Statutes to which he was entitled at the time of his appointment to the higher post during the period of his probation :

Provided further that the service of a teacher appointed on probation may be terminated at any time during the probationary period by giving two months' notice without assigning any reason.

(b)

In making temporary appointments to posts of teachers

(i)

if the temporary vacancy is for a duration longer than one academic session, it shall be filled on the advice of the Selection Committee in accordance with the procedure indicated in the preceding item (a) and

(A)

the Dean of the Faculty;

(B)

The [Chairman of the Department]

[Substituted by Act 62 of 1981 for word " Head of Department"]

; and

(C)

A nominee of the Vice-Chancellor :

(ii)

if the temporary vacancy is for a period less than a year, an appointment to such vacancy shall be made on the recommendation of a local Selection Committee consisting of :

Provided that if the same person holds the offices of the Dean and the head of the Department, the Selection Committee may contain two nominees of the Vice-Chancellor :

Provided further that in case of sudden casual vacancies of teaching posts caused by death or any other reason, the Dean may, in consultation with the [Chairman of the Department]

[Substituted by Act 62 of 1981 for word " Head of Department"]

concerned, make a temporary appointment for a month and report to the Vice-Chancellor and the Registrar about such appointment.

(c)

No. teacher appointed temporarily shall, if he is not recommended by a regular Selection Committee for appointment under these Statutes be continued in service on such temporary employment, or even a fresh appointment unless he is subsequently selected by a local Selection Committee or a Regular Selection Committee, for a temporary or permanent appointment, as the case may be.

(3)

Every teacher of the University shall be ordinarily appointed on a written contract, the form of which shall be prescribed by Regulations. A copy of the contract shall be deposited with the Registrar.

(4)

No teacher of the University shall be confirmed in his post unless he has fulfilled the conditions laid down in the contract of his appointment and unless the Vice-Chancellor on the recommendation of the Dean of the faculty and [Chairman of

the Department]

[Substituted by Act 62 of 1981 for word " Head of Department"]

concerned, and in the case of the '[Chairman of Department,] on the recommendation of the Dean concerned, testifies to his fitness for confirmation.

(5)

All temporary teachers whose total service in the University exceeds one year shall be required within two months of the completion of one year to produce a physical fitness certificate signed by a registered Medical Graduate, not below the status of a Civil Surgeon, provided that if the physical fitness examination is conducted at the University Health Service, the certificate signed by the Chief Medical Officer shall be deemed to be sufficient.

(6)

Teachers appointed on probation and those in whose case probation has been waived shall be required to produce a physical fitness certificate of the nature prescribed in clause (5) before joining their appointment :

Provided that nothing in this clause shall apply to such teachers who are already holding a permanent post in the University.

(7)

Teachers holding temporary appointments shall not be confirmed in their posts unless they produce a physical fitness certificate as required in the foregoing clauses.

(8)

No fee shall be charged if the physical fitness examination is conducted at the University Health Service.

(9)

All the teachers of the University shall, if they are not employed for a fixed period, retire at the age of sixty. The Executive Council may, however, in the interests of the University grant extension of service up to the age of sixty-three subject to the condition that such extension shall not be for more than one year at a time :

Provided that the teachers whose retirement is due on the 1st of September or a later date in any academic year inclusive of such leave preparatory to retirement as may be due to them may be retained at their option in the service of the University till the end of the academic year.

(10)

(a)

A teacher due for retirement shall apply well before the date of retirement for such leave as may be due to him before retirement, and if he fails to so apply, he shall not be entitled to avail of the leave after retirement. Leave so applied for may be sanctioned, or refused in the interests of the University. If leave is so refused, the leave due shall be availed of after retirement.

(b)

All recommendations for extension of service beyond sixty years shall be sent to the Registrar by the Head of the Department through the Dean of the Faculty concerned or by the Dean of the Faculty if such recommendation is concerned the [Chairman of the Department]

[Substituted by Act 62 of 1981 for word " Head of Department"]

at least six months before the date of retirement.

(11)

Notwithstanding anything contained in the foregoing clauses of this Statute, the University may permit any Professor or Reader to accept, concurrently on a part-time basis, appointment in any University or Institution on such terms and conditions as may be prescribed in the Ordinances.

30. Seniority lists.- (1) Whenever, in accordance with these Statutes, any person is to hold an office or be a member of an authority of the University by rotation according to seniority, such seniority shall be determined according to the length of continuous service of such person in his grade and in accordance with such other principles as the Executive Council may from time to time prescribe.

(2)

It shall be the duty of the Registrar to prepare and maintain, in respect of each class of persons to whom the provisions of these Statutes apply, a complete and up-to-date seniority list in accordance with the provisions of the foregoing clause.

(3)

If two or more persons have equal length of continuous service in a particular grade or the relative seniority of any person or persons is otherwise in doubt, the Registrar may, on his own motion and shall, at the request of any such person, submit the matter to the Executive Council whose decision thereon shall be final.

31. Powers in respect of granting and withdrawing degrees.- (1) The Executive Council may, by resolution passed by a majority of not less than two-thirds of the members present and voting :

(a)

on the recommendation of Academic Council, make proposals to the Chancellor for the conferment of honorary degrees;

(b)

withdraw, any ordinary degree or diploma conferred by the University; and

(c)

with the sanction of the Chancellor, withdraw any honorary degree.

(2)

Notwithstanding anything contained in clause (1), in cases of urgency, the Chancellor may, on the recommendations of the Executive Council alone, confer an honorary degree.

32. Students' Union.- (1) There shall be a Students' Union for the University.

(2)

Every student of the University shall be deemed to be a member of the Students' Union.

(3)

There shall be a General Council of the Students' Union which shall consist of such number of students, and shall be constituted in such manner as may be prescribed by the Ordinances.

(4)

The University may, after ascertaining the views of the Students' Council, in such manner as may be prescribed by the Ordinances, fix such fees as the students may be required to pay for their membership of the Students' Union.

(5)

The powers and functions of the Students' Union and of the General Council shall be such as may be prescribed by the Ordinances.

33. Teachers' Association.- (1) There shall be a Teachers' Association for the University.

(2)

The constitution of the Association shall be such as may be prescribed in the Ordinances.

34. Non-academic Staff Association.- (1) There shall be a Staff Association for the staff of the University other than academic staff.

(2)

The constitution of the Staff Association referred to in clause (1) shall be such as may be prescribed in the Ordinances.

35. Maintenance of discipline among students of the University.- (1) All powers relating to discipline and disciplinary action in relation to students shall vest in the Vice-Chancellor.

(2)

The Vice-Chancellor may delegate all or any of his powers as he deems proper to the Proctor and to such other officers as he may specify in this behalf.

(3)

Without prejudice to the generality of his powers relating to the maintenance of discipline and taking such action in the interest of maintaining discipline as may seem to him appropriate, the Vice-Chancellor may, in the exercise of his powers, by order, direct that any student or students be expelled, or rusticated, for a specified period, or be not admitted to a course or courses of study in a College, Department or Institution of the University for a stated period, or be punished with fine or an amount to be specified in the order, or be debarred from taking a University or College or Departmental Examination or Examinations for one or more years, or that the results of the student or students concerned in the Examination or Examinations in which he or they have appeared be cancelled.

(4)

The Principals of Colleges, Heads of Special Centres, Deans of Faculties and Heads of Teaching Departments in the University shall have the authority to exercise all such disciplinary powers over the students in their respective Colleges, Special Centres, Institutions, Faculties and Teaching Departments in the University as may be necessary for the proper conduct of the Institution, Special Centres and teaching in the concerned Departments.

(5)

Without prejudice to the powers of the Vice-Chancellor and the Proctor as aforesaid, detailed rules of discipline and proper conduct shall be framed by the University. The Principals of Colleges, Heads of Special Centres, Deans of Faculties and Heads of Teaching Departments in the University may frame such supplementary rules, as they deem necessary for the aforesaid purposes. Every student shall be supplied with a copy of rules so made.

(6)

At the time of the admission, every student shall be required to sign a declaration to the effect that he submits himself to the disciplinary jurisdiction of the Vice-Chancellor and the other authorities of the University.

36. Establishment of Colleges and Institutions.- The establishment of Colleges and Institutions and the abolition thereof shall be governed by these Statutes Provided that the Colleges and Institutions which have been established in accordance with the Act, the Statutes or the Ordinances in force immediately before the commencement of the Aligarh Muslim University (Amendment) Act, 1972, shall be deemed to be the Colleges and Institutions established by these Statutes.

37. Convocation.- Convocations of the University for the conferring of degrees or for other purposes shall be held in such manner as may be prescribed by the Ordinances.

38. Acting Chairman of meetings.- Where no provision is made for a President or Chairman to preside over a meeting of an authority of the University or any committee of such authority or when the President or Chairman so provided for is absent, the members present shall elect one from among themselves to preside at such meeting.

39. Resignation.- (1) Any member, other than an ex-officio member of the Court, Executive Council, Academic Council or any other authority of the University or any committee of such authority may resign by letter addressed to the Registrar, and the resignation shall take effect as soon as such letter is received by the Registrar.

(2)

Any officer of the University, whether salaried or otherwise, other than Dean, may resign his office by letter addressed to the Registrar:

Provided that such resignation shall take effect only on the date from which the same is accepted by the authority competent to fill the vacancy.

40. Removal of members and employees.- (1) A member of the Court, Executive Council or Academic Council may be removed by a resolution of the Court, Executive Council or Academic Council, as the case may be, passed by a majority of not less than two-thirds of its members on either of the following grounds, namely :

(i)

such member has become incapable of performing his duties;

(ii)

such member has been convicted by a Court of an offence which, in the opinion of the Court of the University, Executive Council or Academic Council, as the case may be, involves moral turpitude.

(2)

Notwithstanding anything contained to the contrary in the terms of his contract of service or of his appointment, any officer of the University, salaried or otherwise, may be removed from that office by the authority which is competent to fill the vacancy on either of the following grounds, namely :

(i)

the officer has become incapable of performing his duties;

(ii)

the officer has been convicted by a Court of an offence which, in the opinion of the Court of the University, Executive Council or Academic Council, as the case may be, involves moral turpitude :

Provided that nothing in this clause shall be deemed to affect any rights accruing to an officer appointed on contract in accordance with the terms of such contract.

(3)

(a)

Notwithstanding anything contained in the terms of the contract of service of a teacher, the Executive Council shall be entitled to dismiss a teacher on grounds of misconduct after following the procedure specified in clause (c), but save as aforesaid, the Executive Council shall not be entitled to determine the employment of a teacher save for good cause and after giving three months' notice in writing or payment of three months' salary in lieu of such notice.

(b)

The determination of a teacher's employment shall require a two-thirds majority of the members of the Executive Council present and voting.

(c)

The Vice-Chancellor may suspend a teacher against whom any misconduct is alleged and shall report the case to the next meeting of the Executive Council, but before any orders for dismissal are passed, the teacher shall be informed of the allegations made against him and shall be given a reasonable opportunity to make such representation to the Executive Council or to any Committee thereof appointed for the purpose, as he may desire to make; and, further, he shall be entitled to claim the benefit of due enquiry, with full opportunity to inspect evidence and cross-examine witnesses, and offer his own evidence and witnesses, before the Executive Council or before a person or persons appointed by it to conduct the enquiry.

(d)

Any dismissal on the ground of misconduct shall take effect on the date on which the teacher was first suspended.

(e)

Before a notice is given or payment is made to the teacher under sub-clause (a), he shall be informed by the Executive Council of the cause of the action proposed to be taken against him and shall be given a reasonable opportunity of making such representations to the Executive Council or to any Committee thereof appointed for the purpose, as he may desire to make.

(f)

Notwithstanding anything contained in the Statutes, the teacher may at any time require his employment to be terminated by giving the Executive Council three months' notice in writing.

41. Residence condition for membership and office.- Notwithstanding anything contained in these Statutes, no person who is not ordinarily resident in India shall be eligible to be an officer of the University or a member of any authority of the University.

42.

Membership of authorities by virtue of membership of other bodies.- Notwithstanding anything contained in these Statutes a person who holds any post of the University or is a member of any authority or body of the University in his capacity as a member of a particular authority or body or as the holder of a particular appointment shall hold office so long only as he continues to be a member of that particular authority or body or the holder of that particular appointment, as the case may be.

43.

Alumni (Old Boys) Association.- No member of the Alumni (Old Boys) Association shall be entitled to vote or stand for the election to the Court unless

(i)

he has been a member of the Association for at least five years continuously prior to the date of election;

(ii)

he pays such subscription and satisfies other conditions, as may be prescribed by the Ordinances; and

(iii)

he is a graduate of the Aligarh Muslim University or an ex-student of the Muhammedan Anglo-Oriental College or the Muhammedan Anglo-Oriental Collegiate School, Aligarh :

Provided that if he is not a graduate, he should have been a member of the Association for at least ten years continuously prior to the date of election.

Explanation. - The word "graduate" in this State shall include a graduate of the Muhammedan Anglo-Oriental College, Aligarh.

44.

Delegation of powers.- Subject to the provisions of the Act and these Statutes, any officer or authority of the University may delegate his or its powers to any other officer or authority or person under their respective control and subject to the condition that overall responsibility for the exercise of the powers so delegated shall continue to vest in the officer or authority delegating such powers.

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